NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- V)

Company Petition (CAA) No. 59 (PB) OF 2020
Connected with
Company Application (CAA) No. 43 (PB) OF 2020
(Under Section 230 & 232 of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION:

GREEN LINE CHEMICALS PRIVATE LIMITED
.....Petitioner No. 1/Transferor Company

AND

GREEN LINE LAMINATES PRIVATE LIMITED
.....Petitioner No. 2/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on: 29.07.2022

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. P. S. N. PRASAD, MEMBER (JUDICIAL)

SH. RAHUL BHATNAGAR, MEMBER (TECHNICAL)

PRESENT

For the Petitioners:	PCS Kangan Jain
For the RD:	Adv. Shankari Mishra
For the OL:	Adv. Hemlata Rawat and Adv. Aayushmaan Vatsyayana
For the IT Dept.:	Adv. Easha Kadian, Adv. Sanjay Kumar and Adv. Himanshu

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ORDER

AS PER SH. RAHUL BHATNAGAR, MEMBER (TECHNICAL)

1. The present Petition is filed by Petitioner Companies viz., *Green Line Chemicals Private Limited* (Transferor Company) and *Green Line Laminates Private Limited* (Transferee Company) under Sections 230 & 232 of the Companies Act, 2013 (Act, 2013) r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (Rules) for the Sanction of the proposed Scheme of Amalgamation (Scheme) of the Petitioner Companies. The registered offices of the Petitioner Companies are situated in the NCT of Delhi and are under the jurisdiction of this Tribunal.

2. The Board of Directors of the Petitioner Companies on 18.07.2019 considered and unanimously approved the proposed Scheme.

3. The Transferor Company is a private limited company incorporated on 14.08.2003 having Company Identification Number U51496DL2003PTC121790 engaged in the business of Coated Textile Fabrics. The Transferee Company is a private limited company incorporated on 09.12.2013 having Company Identification Number U52390DL2013PTC261796 engaged in the business of Coated Textile Fabrics.

4. It is stated that the Authorized, Issued, Subscribed and Paid up Share Capital of the Petitioner Companies as per Financial Statements for the period ended 31.03.2019 is as under:

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SI No.	Company	Authorised Share Capital	Issued, Subscribed and Fully Paid-up Share Capital
1	Transferor Company	Rs. 1,00,00,000/- divided into 10,00,000 equity shares of Rs. 10 each.	Rs.97,40,000/- divided into 9,74,000 equity shares of Rs.10 each.
2	Transferee Company	Rs. 1,70,00,000/- divided into 17,00,000 equity shares of Rs. 10 each.	Rs.1,60,00,000/- divided into 16,00,000 equity shares of Rs. 10 each.

5. The Rationale of the proposed Scheme of Amalgamation is elaborately described in the present Company Petition which may be summarized as under:

   a. Transferor Company and the Transferee Company are closely held Private Group Company under common shareholding, management and control. The proposed amalgamation of the Transferor Company with the Transferee Company would result in business synergy, consolidation and pooling of their resources.

   b. The proposed amalgamation would enable pooling of physical, financial and human resource of these Company for the most

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beneficial utilization of these factors in the combined entity. Post Scheme, the Transferee Company will enjoy large net worth and financial resources.

c. The proposed Scheme of Amalgamation will result in usual economies of a centralized and a large company including elimination of duplicate work, reduction in overheads, better and more productive utilization of financial, human and other resource and enhancement of overall business efficiency. The proposed Scheme will enable these Company to combine their managerial and operating strength, to build a wider capital and financial base and to promote and secure overall growth of their businesses.

d. The resulting amalgamated company will be able to participate more vigorously and profitably in the competitive market scenario.

e. The said Scheme of Amalgamation will have beneficial impact on the Transferor and the Transferee Company, their shareholders, employees and other stakeholders and all concerned.

6. It is stated by the Petitioner Companies that there are no pending proceedings for inspection, inquiry or investigation under the provisions of the Act, 2013 or under the provisions of Companies Act, 1956.

7. The Petitioner Companies have stated that the accounting treatment proposed in the Scheme of Amalgamation is in conformity with the

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accounting standards prescribed under Section 133 of the Companies Act, 2013. The Certificates from the respective Statutory Auditors of the Transferor Company and the Transferee Company are annexed and collectively marked as Annexure B-5 and Annexure C-5 respectively.

8. It is also submitted that the Board of Directors of the Petitioner Companies have determined the share exchange ratio as under:

   165 Equity Shares of Rs. 10/- each to be issued and allotted by the Transferee Company in lieu of every 100 Equity Shares of Rs. 10/- each fully paid up to the shareholders of the Transferor Company.

9. The Petitioner Companies have also annexed the valuation report dated 27.08.2019, issued by Mr. Rakesh Mundra, Registered Valuer specifying the consideration for the proposed amalgamation.

10. As per records, this Tribunal vide its Order dated 13.05.2020,dispensed with the convening and holding the meeting of Secured Creditors of the Transferor Company and further directed to convene separate meetings of Equity Shareholders and Un-secured Creditors of the Transferor Company and of Equity Shareholders, Secured Creditors and Un-secured Creditors of the Transferee Company, at the Registered Offices of the Petitioner Companies. Meetings were convened and held on 03.07.2020.

11. The Scheme was approved unanimously by the Equity Shareholders and Un-secured Creditors of the Transferor Company and Equity

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Shareholders, Secured Creditors and Un-secured Creditors of the Transferee Company in their respective meetings. The common Chairperson appointed for the meetings has filed her reports dated 06.07.2020 which are annexed as Annexure K, L, M, N and O to the Petition.

12. This Tribunal vide its Order dated 11.09.2020 directed to issue notice of hearing in respect of present Company Petition to the Statutory Authorities and also to make paper publication in this respect in "Financial Express" (English, Delhi Edition) and "Jansatta" (Hindi, Delhi Edition).

13. In compliance thereof, the Petitioner Companies have filed Affidavit of service and publication, dated 16.10.2020, confirming that notices, have been duly published in "Financial Express" (English, Delhi Edition) and "Jansatta" (Hindi, Delhi Edition) on 15.10.2020. The Petitioner Companieshave also served notice of the Company Petition to (a) the Central Government through the office of the Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi on 16.09.2020; (b) the Registrar of Companies, New Delhi on 16.09.2020; (c) the Official Liquidator, New Delhi on 16.09.2020; (d) the Income Tax Department on 17.09.2020.

14. In response to the above stated notice, the Regional Director has filed its report in the form of an affidavit dated 28.10.2020, along with the

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reply of the Petitioner Companies dated 20.10.2020 and the report of the Registrar of Companies dated 28.08.2020.

15. That the Registrar of Companies in its Report has raised the following observations:

a) As per petition, the Board of Directors of the Transferee Company has approved the proposed Scheme of Amalgamation in their meeting held on 18.07.2019. Whereas the Valuation Report for the proposed swap ratio is dated 27.08.2019. Therefore, it is not understood as to how the swap ratio which was prepared on the succeeding date can be approved/ adopted ahead of its preparation in terms of the provisions of Section 232(2)(c) of the Companies Act, 2013.

b) It has been observed from the Financial Statement as at 31.03.2019 filed by the Transferor Company in MCA21 Registry and its provisional Balance Sheet as at 31.03.2020 attached to the present petition that during these years, it has not done any business activity and larger amount of its funds have been utilized as Long Term Loans and Advances of Rs. 2,23,00,000 (PY Rs. 2,00,00,000) to the captioned Transferee Company.

c) It has been observed that the Transferee Company has filed eform AOC-4 in MCA21 Registry on 23.10.2019 enclosing therewith the financial statement as at 31.03.2019 of Transferor Company

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instead of Transferee Company. Thus, there is prima facie violation of section 137 of the Companies Act, 2013.

16. The Regional Director in its Report, upon examination of the Scheme, Reply of the Petitioner Companies and the report of the RoC, submitted that the Petitioner Transferee Company has filed its Balance Sheet (AOC-4) in MCA21 Registry on 08.12.2020, hence, the observation made above in Para 10(c) has been made good by the Petitioner Transferee Company. Further, the following submissions were made:

i. *Para 8 of the Scheme of Amalgamation speaks as under:*

"The reserves created out as result of Scheme of Amalgamation being approved, the same shall be transferred 10 the "General Reserve....."

It is pertinent to state that any surplus arising out of amalgamation/arrangement is the nature of capital profit since it has not derived from operational activities of the company, hence, it shall be the nature of capital reserve only. In the above mentioned para of the Scheme (Para 8), the Scheme states that the reserves created out of the Scheme of Amalgamation shall be General Reserve is not correct, hence, the Hon'ble Tribunal may direct to change the contents of the Scheme by replacing 'General Reserve' to 'Capital Reserve'.

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ii. *Para 16 ofthe Scheme ofAmalgamation speaks about change/amendment of Object Clause of the Transferee Company (Main Object) on approval ofthe Scheme. The said amendment does not fall under ambit of Section 230 to 232 ofthe Companies Act, 2013 since it falls under the provisions of Section 13 ofthe Companies Act, 2013 which is under the domain of Registrar of Companies (ROC). Hence, the Hon'ble Tribunal may direct the Petitioner Companies to suitably amend the Scheme of Arrangement/Amalgamation by incorporating the words therein "subject to approval of the Registrar of Companies under Section 13 of the Companies Act, 2013" at the beginning ofthe said para ofthe Scheme.*

iii. *Para 22 ofthe Scheme speaks as under: "If any doubt or difference or issue arises between the Transferor Company and the Transferee Company or any of their Shareholders or Creditors and/or any other person as to the construction hereof or as to anything else contained in or relating to or arising out of this Scheme, the same shall be referred to Ms. Kangan Jain, Proprietor of M/s. Kangan Jain Associates, Practising Company Secretaries, 122, Arihant Nagar, Punjabi Bagh, (West), New Delhi 110 026, Mobile No. 8447481119, whose decision shall be final and binding on all concerned.*

In view of the above, it is to submit that the above contention in the Scheme does not fall under the ambit of the provisions of Section

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230-232 of the Companies Act, 2013, hence, it is prayed before the Hon'ble Tribunal to direct the Petitioner Companies to delete the said para from the Scheme.

17. The Petitioner Companies, vide Affidavit dated 16.02.2021, responded to the observations made by the Regional Director and submitted the following:

i. *That in relation to Para 8 of The Scheme, which says*

The reserves created out as a result of Scheme of Amalgamation being approved, the same shall be transferred to the "General Reserve" to be utilized as per the Accounting Standards issued by the Institute of Chartered Accountants of India.

The same may be modified to:

The reserves created out as result of Scheme of Amalgamation being approved, the same shall be transferred to the "Capital Reserve" to be utilized as per the Accounting Standards issued by the Institute of Chartered Accountants of India.

ii. *That in relation to Para 22 of the Scheme, which says:*

If any doubt or difference or issue arises between the Transferor Company and the Transferee Company or any of their Shareholders or Creditors and/or any other person as to the construction hereof or as lo anything else contained in or relating to or arising out of this Scheme, the same shall be referred to Ms.

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Kangan Jain, Proprietor of M/s Kangan Jain & Associates, Practising Company Secretaries, 122, Arihant Nagar, Punjabi Bagh (West). New Delhi - 110026, Mobile No. 8447481119, whose decision shall be final and binding on all concerned.

The same may be modified to:

If any doubt or difference or issue arises between thee Transferor Company and the Transferee Company or any of their Shareholders or Creditors and/or any other person as to the construction hereof or as to anything else contained in or relating to or arising out of this Scheme, the same shall be resolved by the Honorable National Company Law Tribunal of the concerned jurisdiction.

iii. *That the swap ratio mentioned in the scheme and the ratio mentioned in the audit valuation report subsequently are the same i.e. 165 (One Hundred and Sixty Five) Equity Shares of Rs. 10/- (Ten) each to be issued and allotted by the Transferee Company in lieu of every 100 (One Hundred) Equity Shares of Rs. 10/- (Ten) each fully paid up to the shareholders of the Transferor Company.*

iv. *That in relation to the Objective Clause, the amendments, if any shall be as per Companies Act 2013 and related Rules.*

18. The Regional Director, vide Additional Affidavit dated 12.04.2021, submitted that the Petitioner Transferee Company has agreed with the observations. Further, during the course of hearing on

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21.03.2022, the Counsel for the Regional Director submitted that the Department has no objections.

19. The Official Liquidator has also filed its report dated 23.10.2020 and stated that no complaint has been received against the proposed Scheme from any person/party interested in the Scheme in any manner and that the report is based on the documents submitted by the Petitioner Companies. It is also stated that the affairs of the Transferee Company does not appear to have been conducted in a manner prejudicial to the interest of its members or to public interest as per the provisions of the Act, 2013 or Companies Act, 1956.

20. The Income Tax Department has also filed its report dated 25.08.2021 and in Para 11, it had the following observations on the Valuation Report:

    - *Valuation has not been done as per 11UA of Income Tax Rules, 1962, which is mandatory for determining the Share Exchange Ratio between Transferee and Transferor companies.*

    - *It is not clear whether over-consideration or under-consideration of assets was considered so any taxability (if any) cannot be determined right now.*

    - *Valuation has not been done by Merchant Banker/or Valuer on Panel on Income Tax Department.*

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21. The Petitioner Companies, vide Affidavit dated 09.03.2022, responded to the observations made by the Income Tax Department and submitted the following:

i. That the Petitioner Companies will duly comply with the provisions of Section 72A of the Income Tax Act, 1961 post merger.

ii. That the Valuation has been done for the purpose of merger under Section 230-232 of the Companies Act, 2013 and have duly complied with all the provisions of this Act. Thus Valuation has been done as per the Companies Act, 2013 and NCLT Rules, 2016 for determining the share exchange ratio between the Transferor and Transferee Companies

iii. That the Valuation has been done by the Registered Valuer under IBBI having Registration No. IBBI/RV/06/2019/12126 and the same has been done as per Companies Act, 2013 and NCLT Rules, 2016 and thus consideration of assets has been taken accordingly, therefore question of tax liability does not arise. Without prejudice to anything said above, it is hereby clarified that the company will comply with any tax liability that arise in future/ post merger.

iv. That the Valuation has been done by Mr. Rakesh Mundra, Registered Valuer under IBBI having Registration No. IBBI/RV/06/2019/12126. The Valuer who is registered under IBBI is competent and qualified to do valuation of companies applying for merger.

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22. During the hearing on 12.07.2022, this Tribunal raised some queries and sought clarifications regarding the objections by the Statutory Authorities on the Scheme of Amalgamation. Vide Affidavit dated 20.07.2022, the Petitioner Companies made the following submissions:-

i. Draft/Unsigned Valuation report was received from the Valuer on the basis of which scheme has been passed during the board meeting. There is no discrepancy between the draft valuation report and signed valuation report. Moreover, the swap ratio mentioned in scheme and ratio mentioned in the valuation report subsequently are the same, i.e., 165 Equity shares of Rs. 10/- each to be issued and allotted by the Transferee Company in lieu of every 100 Equity Shares of Rs. 10/- each fully paid up to the shareholders of the Transferor Company.

ii. Para 22 has been modified as per order dated 21.01.2021 of this Tribunal.

iii. With respect to the objections raised by the Income Tax Department, affidavit has been already filed dated 9" March 2022. After submission of such reply, the Income Tax Department was asked by the Hon'ble NCLT, whether they are satisfied with the reply and whether they have further any objections/comments. The Income Tax department had replied

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that they were satisfied with the reply and they do not have any further observations.

23. In view of the foregoing, upon considering the approval accorded by the members and creditors of both the Petitioner Companies to the proposed Scheme, as well the reports filed by the Regional Director, (Northern Region), Income Tax Department, Official Liquidator and further considering the affidavits filed by the Petitioner Companies, there appears to be no impediment in sanctioning the proposed Scheme. Consequently, sanction is hereby granted to the Scheme proposed by the Petitioner Companies under Section 230 & 232 of the Companies Act, 2013. The Petitioner Companies, however, shall remain bound to comply with all statutory requirements in accordance with law.

24. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the aforesaid sanction granted by this Tribunal to the Scheme, will not come in the way of action being taken, albeit, in accordance with law, against any of the concerned person, Director and Officials of the Petitioner Companies.

25. While approving the scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes, GST, or any other charges, if any, and payment in accordance with law or in respect to

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any permission/compliance with any other requirement which may be specifically required under any law.

26. THIS TRIBUNAL FURTHER ORDERS THAT:

(i) Upon the sanction becoming effective from the appointed date of amalgamation i.e., 01.04.2019, the Transferor Company shall stand dissolved without undergoing the process of winding up.

(ii) All benefits, entitlements, incentives and concessions under incentive schemes and policies that the Transferor Company are entitled to including under Customs, Excise, Service Tax, VAT, Sales Tax, GST and Entry Tax and Income Tax laws, subsidy receivables from Government, grant from any governmental authorities, direct tax benefit/exemptions/deductions, shall, to the extent statutorily available and along with associated obligations, stand transferred to and be available to the Transferee Company as if the Transferee Company was originally entitled to all such benefits, entitlements, incentives and concessions;

(iii) All contracts of the Transferor Company, which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favor of the Transferee Company and may be enforced by or against it as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obliged thereto;

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(iv) All the employees of the Transferor Company shall be deemed to have become the employees and the staff of the Transferee Company with effect from the Appointed Date, and shall stand transferred to the Transferee Company without any interruption of service and on the terms and conditions no less favorable than those on which they are engaged by the Transferor Company, as on the Effective Date, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits;

(v) All liabilities of the Transferor Company, shall, pursuant to the provisions of section 232(4) and other applicable provisions of the Company Act, 2013, to the extent they are outstanding as on the Effective Date, without any further act, instrument or deed stand transferred to and be deemed to be the debts, liabilities, contingent liabilities, duties and obligations etc. as the case may be, of the Transferee Company and shall be exercised by or against the Transferee Company, as if it had incurred such liabilities.

(vi) All proceedings now pending by or against the Transferor Company be continued by or against the Transferee Company.

(vii) The Income Tax Department is permitted to retain its recourse for recovery in respect of demand and any other future liabilities of the Transferor Company and the Transferee Company, in respect of the assets sought to be transferred under the proposed scheme.

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(viii) That any person interested shall be at liberty to apply to this Tribunal in the above matter for any directions that may be necessary.

27. That the Petitioner Companies shall within thirty days of the date of the receipt of this Order cause a Certified Copy of this Order to be delivered to the Registrar of Companies for registration and on such Certified Copy being so delivered, the Transferor Company shall be dissolved and the Registrar of Companies shall place all documents relating to the Transferor Company on the file kept by him in relation to the Transferee Company and the files relating to all the Petitioner Companies shall be consolidated accordingly.

28. The Company Petition is ALLOWED in the aforesaid terms.

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(RAHUL BHATNAGAR)
Member (T)

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(P. S. N. PRASAD)
Member (J)